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Attorneys for Plaintiffs
Roberto Sandoval Carrillo,
and others similarly situated

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25-cv-00191-SRM-KES

DECLARATION OF ROBERTO SANDOVAL CARRILLO IN SUPPORT OF PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.
Ctrm: 5D
Judge: Hon. Serena R. Murillo

[Filed concurrently with Notice of Motion and Motion; Declaration of Raymond Y. Kim; and [Proposed] Order]

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DECLARATION OF ROBERTO SANDOVAL CARRILLO

1. I, Roberto Sandoval Carrillo, am the named plaintiff in the above-entitled action. I have personal knowledge of the facts set forth in this declaration and, if called as a witness, could and would testify competently to them.

2. In 1998, I obtained my Bachelor of Arts in History from San Francisco State University. After obtaining my degree, I moved to Southern California and obtained my teaching credential in 2000 and was student teaching for middle school and high school classes during that time.

3. For many years until December 2015, I worked as an educator in the Sweetwater Union High School District. I am also a musician, and during that time I also pursued a music career, obtained a certificate from the Berkeley College of Music, and added music as a subject to my teaching credential as a supplemental subject. I am a musician in two bands, "Electrovot" and "Pain Love n' War." Attached as **Exhibit A** is a picture of two album covers, one for an Electrovot album and the second for a Pain Love n' War album. Attached as **Exhibit B** is a picture of me and my bandmates and one of me for a promotion.

4. In 2016, I was charged with possessing explicit material of a minor and was convicted in 2017. Due to the conviction, I appear as a registered sex offender on the Megan's Law Website, along with information about the basis for my convictions. Due to the crime I spent five years in prison and was released in October 2022.

5. I deeply regret my actions. I have made every effort to rebuild and redefine myself by working diligently to become a productive member of my community. While under the influence of alcohol I tend to exercise bad judgment. I recognize this, and as a result in 2025 I voluntarily asked my probation officer to have a full abstinence condition placed on my probationary guidelines.

6. Since the charge, I obtained a paralegal certificate from University of

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San Diego and have been working to obtain a certificate in Labor Studies from Los Angeles Trade Technical College with the goal of obtaining a union job. I have also sought to find employment and make a living, but employers like Vons have made it difficult for me, even though I feel I am overqualified for many of the positions I apply for.

7. In January 2023 I applied for a deli clerk position with Vons. Vons gave me a conditional offer of employment, and I began work in early January 2023.

8. As a deli clerk I stood behind the deli counter taking food orders, measuring, cooking, and serving food, cleaning the deli area, and generally offering great customer service. I really enjoyed the job and my colleagues.

9. On January 24, Asurint sent me an email stating:

> Dear Roberto,
>
> The purpose of this letter is to notify you that Asurint, a consumer reporting agency, is reporting criminal or other public record information that may be adverse about you to:
>
> Vons - San Diego #2784 (Southern Cal)
> 515 W Washington ST c/o Albertsons San Diego, CA 92103
> (855) 275-7185
>
> The above listed employer/agency has certified that it is using such public record information to determine your eligibility for employment, promotion, reassignment, and/or retention or volunteer placement.

A true and correct copy of Asurint's email is attached as **Exhibit C**.

10. On or about February 28, Asurint completed its investigation and prepared a written background report on Plaintiff. On its website, Asurint touts that its background check services include, "Sex Offender Registry searches from all 50 states and many U.S. territories and tribes are included within a state and local search. A standalone search, or a specific state, can also be requested." *See* Asurint, "Criminal Background Checks" (available at https://asurint.com/services/criminal-

background-checks/) (last visited on January 14, 2026).

11. Asurint's background report includes conviction information from the Megans Law website.

SEX OFFENDER REPORT

CALIFORNIA

ROBERTO SANDOVAL **DOB: 4/24/XXXX**

Address(es): 551 S 35TH ST, SAN DIEGO, 92113
Alias(es): ROBERTO A SANDOVAL

CASE #CA31_46117241F7968 - CALIFORNIA SEX OFFENDER

CASE SUMMARY

Case #	File Date	Court Type	Case Disposition	Disposition Date
CA31_46117241F7968	n/a	SEX OFFENDER	n/a	n/a
Offense(s)	**Offense Date**	**Level**	**Offense Disposition**	**Disposition Date**

CASE DETAILS

A true and correct copy of Asurint's background report is attached as **Exhibit D.**

12. On February 28, I received an email from Vons and Asurint entitled "Pre-Adverse Action." Among other things, the email stated:

> In evaluating your conditional offer of employment, transfer or promotion with Vons/Pavilions, we received the enclosed screening report that we procured with your authorization from Asurint. This notification is provided because an adverse employment decision (e.g. the withdrawal of a conditional offer of employment, transfer or promotion) may be based, in whole or in part, on this screening report or on information regarding past criminal convictions that you identified during the application process. Please carefully review the screening report.
>
> **We have identified the following convictions on your report to be job-related:**
>
> Sex Offender

A true and correct copy of the February 28, 2023 Pre-Adverse Action Notice

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Fullerton, CA 92832

is attached as **Exhibit E**.

13. On March 6, after back and forth email communications with Asurint, I emailed Vons and Asurint twice, explaining that I was not a "hands on offender" and had been convicted of receiving explicit images of minors, I had been under the influence of alcohol at the time, and I do not pose a threat to the public. I also provided mitigating and rehabilitation evidence, including letters from former colleagues and a former therapist attesting to my character and fitness and a Certificate of Achievement for completing the Dual Diagnosis Residential Drug Abuse Treatment Program in July 2022. A true and correct copy of my two March 6, 2023 emails and mitigating evidence I submitted to Vons and Asurint is attached as **Exhibit F**.

14. That same day Vons responded via email, "I have no access to background checks and I am not informed when an applicant fails to pass. I do not have the ability to override your background check. You will need to go through Asurint." A true and correct copy of Vons' March 6, 2023 email response is attached as **Exhibit G**.

15. The following day on March 7, 2023, I emailed Vons at a different email address. In the email I explained, among other things, that "I worked as a high school teacher for 15 years, and there were never any incidents of misconduct," and provided the School District's phone number so Vons could verify my statement. I also provided the same mitigating and rehabilitation evidence I had submitted in my March 6 email to Vons and Asurint. A true and correct copy of my March 7, 2023 email is attached **Exhibit H**.

16. That same day on March 7, I received an email from Vons and Asurint with the subject, "Adverse Action Notification." The Adverse Action Notice stated that my employment was terminated based on my sex offender registry status found in the background report:

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

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> Dear Applicant,
>
> We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.
>
> This decision was influenced in whole or in part by a pre-employment screening report prepared by Asurint. Please note that Asurint did not make this employment decision on behalf of our company. This decision was made pursuant to Vons/Pavilions hiring policies.
>
> We have identified the following convictions on your report to be job-related:
>
> Sex Offender
>
> The decision to withdrawal [sic] the employment offer is based on the fact that one or more convictions were found during the pre-employment screening process that Vons/Pavilions considers related to the job duties of the position to which you applied. Therefore, Vons/Pavilions has concluded that it is consistent with business necessity to withdraw your offer of employment.

A true and correct copy of the March 7, 2023 Adverse Action Notice is attached as **Exhibit I**.

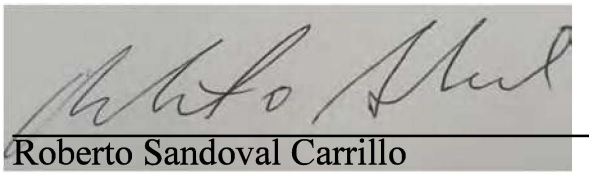
17. In response to the Adverse Action Notice, on March 8 and 10 I emailed Vons inquiring whether I could apply for other positions, such as an overnight stocking clerk. Vons did not respond. A true and correct copy of my March 8 and March 10 emails are attached as **Exhibit J**.

18. Based on Vons' responses to my emails and the timing of the Adverse Action Notice, it is clear that Vons did not conduct an individualized assessment of whether my conviction history had a direct and adverse relationship with the specific duties of a Vons deli clerk. Vons did not even consider the fact that I had been successfully working at Vons as a deli clerk for two months and had been excelling in my position, so much so that the general manager, Laura, told me I could use her as a reference for future employment. In addition, my direct supervisor, Holly, also told me to get assistance from the union and use her as a reference.

19. If Vons would give me a fair chance at employment, I would like to apply again to work for Vons.

20. I am not aware of any conflicts with the members of the Megan's Law Class, Fair Chance Class, or FCRA Class. I have been, and continue to be, very actively engaged in this litigation. I have taken time away from my work to prepare and appear in-person for my deposition, reviewed all of the pleadings we have filed in this action, carefully reviewed all discovery requests and actively helped prepare responses, diligently searched for, gathered and reviewed nearly six hundred hundreds of pages of documents and communications for production, including hundreds of pages of email communications with my probation officer, and carefully reviewed and prepared my declaration submitted with this Motion. Also, I stay abreast of developments in the case and regularly communicate with my counsel.

I declare under penalty of perjury under the laws of California and the United States that the foregoing is true and correct. Executed on January 14, 2026.



Roberto Sandoval Carrillo

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EXHIBIT A

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

ELECTROVOT
TURNING POINT

PAIN
LOVE & WAR
Over Looking Back

EXHIBIT B

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

DAS BUNKER
POLITE
IN PUBLIC.COM

EXHIBIT C

Ray Kim Law, APC
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Fullerton, CA 92832

From: <Compliance@asurint.com>
Date: Tue, Jan 24, 2023 at 7:04 AM
Subject: FCRA 613 Notification ROBERTO SANDOVAL
To: <rob.sandoval2000@gmail.com>

1/24/2023
ROBERTO SANDOVAL
2894 Franklin Avenue
San Diego, CA 92113

613

NOTICE TO CONSUMER OF REQUEST OF CONSUMER REPORT AND CONSUMER REPORT PROCESSING FOR EMPLOYMENT PURPOSES

Dear Roberto:

The purpose of this letter is to notify you that Asurint, a consumer reporting agency, is reporting criminal or other public record information that may be adverse about you to:

Vons - San Diego #2784 (Southern Cal)
515 W Washington ST c/o Albertsons San Diego, CA 92103
(855) 275-7185

The above listed employer/agency has certified that it is using such public record information to determine your eligibility for employment, promotion, reassignment, and/or retention or volunteer placement.

Once your report has completed, to access a copy of your report, please go to https://reports.asurint.com/fcra and enter the following information.

Your Last Name
Last 4 digits of Your SSN
This Unique PIN Value: Xow7g66M

This secure log-in will direct you to a site where you can download, view, or print your Consumer Report, a Summary of Consumer Rights under the Fair Credit Reporting Act, a dispute form, and contact information for Asurint if you would like to dispute the information contained in your report.

If you are unable to access your report via this secure site, or have questions regarding your report, please contact Asurint at (800) 906-2034 or via email at compliance@asurint.com and a copy will be sent to you via U.S. Mail.

Asurint

Order ID(s): 48984538

EXHIBIT D

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

Background Check Report

ASURINT
VERIFY EVERY HIRE
800.906.1674
support@asurint.com

Search Information

Candidate: SANDOVAL, ROBERTO	**Order ID:** 48984538
SSN: XXX-XX-6174	**Customer:** Vons - San Diego #2784 (Southern Cal)
DOB: 4/24/XXXX	**Order Date:** 1/23/2023 3:28:28 PM
Reference 1: 17143032	**Completion Date:** 2/28/2023 4:27:22 PM
Reference 2: 215391	**Package:** 4 - Data + 1 Recommendation No Auto Score
Reference 5: GM/HBC Clerk	**Reference 6:** San Diego, CA, United States

State Notification

The following statement is in at least 12 point bold font: Asurint does not guarantee the accuracy or truthfulness of the information in this report as to the subject of the investigation, but only that it is accurately copied from public records. Information generated as a result of identity theft, including evidence of criminal activity, may be inaccurately associated with the consumer who is the subject of this report. Client agrees and certifies that its ordering of and use of this report is in strict compliance with any applicable local, state, and federal laws and regulations. In California, as an investigative consumer reporting agency (ICRA), Asurint shall provide a consumer seeking to obtain a copy of a report or making a request to review a file, a written notice in simple, plain English and Spanish setting forth the terms and conditions of his or her right to receive all disclosures under California law.

SANDOVAL, ROBERTO

Self-Disclosed Offense Declaration (Nationwide)
Search Candidate: SANDOVAL, ROBERTO

Offense	Date	State	County	Source	Description
---	---	---	---	Criminal	Receipt of an image of a minor. August 2017. San Diego.

End of Section

QA process
Search Candidate: SANDOVAL, ROBERTO

No Reportable Records Found

End of Section

VeriFynd

VeriFynd

ROBERTO SANDOVAL

Search Criteria

Search Name: ROBERTO SANDOVAL - **VERIFIED**

Date of Birth: 4/24/XXXX - **VERIFIED**

VeriFynd Option

Setting: Modified Alias

Searched By: SSN

Social Security Administration SSN Verification

SSN: **VALID (ISSUED)**

Issue State: CA

Issue Dates: 1984 - 1984

Note: A validated SSN only indicates that the number is a valid SSN issued by the Social Security Administration. It does not verify that the SSN belongs to the candidate of the search.

USER SUBMITTED ADDRESSES FOR ROBERTO SANDOVAL

Name	Address
ROBERTO SANDOVAL 4/24/XXXX	2894 Franklin Avenue San Diego, CA 92113

End of Section

California County Court Criminal (SAN DIEGO)
Search Candidate: SANDOVAL, ROBERTO

No Reportable Records Found

End of Section

National Criminal Information Bureau (Nationwide)
Search Candidate: SANDOVAL, ROBERTO

NCIB: Asurint's primary source data solution includes criminal information from the following: Felony and Misdemeanor courts, State Administrative Office of the Courts, State Department of Corrections, 50 State Sex Offender Registries and the District of Columbia, and criminal records from targeted single county search results. Criminal records are updated daily.

SEX OFFENDER REPORT

CALIFORNIA

ROBERTO SANDOVAL **DOB: 4/24/XXXX**

Address(es): 551 S 35TH ST, SAN DIEGO, 92113
Alias(es): ROBERTO A SANDOVAL

CASE #CA31_46117241F7968 - CALIFORNIA SEX OFFENDER

CASE SUMMARY

Case #	File Date	Court Type	Case Disposition	Disposition Date
CA31_46117241F7968	n/a	SEX OFFENDER	n/a	n/a
Offense(s)	**Offense Date**	**Level**	**Offense Disposition**	**Disposition Date**

CASE DETAILS

End of Section

End of Report 1 of 1

Para información en español, visite www.consumerfinance.gov/learnmore o escribe a la Consumer Financial Protection Bureau, 1700 G Street N.W., Washington, DC 20552.

A Summary of Your Rights Under the Fair Credit Reporting Act

The federal Fair Credit Reporting Act (FCRA) promotes the accuracy, fairness, and privacy of information in the files of consumer reporting agencies. There are many types of consumer reporting agencies, including credit bureaus and specialty agencies (such as agencies that sell information about check writing histories, medical records, and rental history records). Here is a summary of your major rights under FCRA. **For more information, including information about additional rights, go to www.consumerfinance.gov/learnmore or write to: Consumer Financial Protection Bureau, 1700 G Street N.W., Washington, DC 20552.**

- **You must be told if information in your file has been used against you.** Anyone who uses a credit report or another type of consumer report to deny your application for credit, insurance, or employment – or to take another adverse action against you – must tell you, and must give you the name, address, and phone number of the agency that provided the information.

- **You have the right to know what is in your file.** You may request and obtain all the information about you in the files of a consumer reporting agency (your "file disclosure"). You will be required to provide proper identification, which may include your Social Security number. In many cases, the disclosure will be free. You are entitled to a free file disclosure if:

o a person has taken adverse action against you because of information in your credit report;
o you are the victim of identity theft and place a fraud alert in your file; o your file contains inaccurate information as a result of fraud; o you are on public assistance; o you are unemployed but expect to apply for employment within 60 days.

In addition, all consumers are entitled to one free disclosure every 12 months upon request from each nationwide credit bureau and from nationwide specialty consumer reporting agencies. See www.consumerfinance.gov/learnmore for additional information.

- **You have the right to ask for a credit score.** Credit scores are numerical summaries of your credit-worthiness based on information from credit bureaus. You may request a credit score from consumer reporting agencies that create scores or distribute scores used in residential real property loans, but you will have to pay for it. In some mortgage transactions, you will receive credit score information for free from the mortgage lender.

- **You have the right to dispute incomplete or inaccurate information.** If you identify information in your file that is incomplete or inaccurate, and report it to the consumer reporting agency, the agency must investigate unless your dispute is frivolous. See www.consumerfinance.gov/learnmore for an explanation of dispute procedures.

- **Consumer reporting agencies must correct or delete inaccurate, incomplete, or unverifiable information.** Inaccurate, incomplete, or unverifiable information must be

removed or corrected, usually within 30 days. However, a consumer reporting agency may continue to report information it has verified as accurate.

- **Consumer reporting agencies may not report outdated negative information.** In most cases, a consumer reporting agency may not report negative information that is more than seven years old, or bankruptcies that are more than 10 years old.

- **Access to your file is limited.** A consumer reporting agency may provide information about you only to people with a valid need – usually to consider an application with a creditor, insurer, employer, landlord, or other business. The FCRA specifies those with a valid need for access.

- **You must give your consent for reports to be provided to employers.** A consumer reporting agency may not give out information about you to your employer, or a potential employer, without your written consent given to the employer. Written consent generally is not required in the trucking industry. For more information, go to www.consumerfinance.gov/learnmore.

- **You may limit "prescreened" offers of credit and insurance you get based on information in your credit report.** Unsolicited "prescreened" offers for credit and insurance must include a toll-free phone number you can call if you choose to remove your name and address form the lists these offers are based on. You may opt out with the nationwide credit bureaus at 1-888-5-OPTOUT (1-888-567-8688).

- The following FCRA right applies with respect to nationwide consumer reporting agencies:

CONSUMERS HAVE THE RIGHT TO OBTAIN A SECURITY FREEZE

You have a right to place a "security freeze" on your credit report, which will prohibit a consumer reporting agency from releasing information in your credit report without your express authorization. The security freeze is designed to prevent credit, loans, and services from being approved in your name without your consent. However, you should be aware that using a security freeze to take control over who gets access to the personal and financial information in your credit report may delay, interfere with, or prohibit the timely approval of any subsequent request or application you make regarding a new loan, credit, mortgage, or any other account involving the extension of credit.

As an alternative to a security freeze, you have the right to place an initial or extended fraud alert on your credit file at no cost. An initial fraud alert is a 1-year alert that is placed on a consumer's credit file. Upon seeing a fraud alert display on a consumer's credit file, a business is required to take steps to verify the consumer's identity before extending new credit. If you are a victim of identity theft, you are entitled to an extended fraud alert, which is a fraud alert lasting 7 years.

A security freeze does not apply to a person or entity, or its affiliates, or collection agencies acting on behalf of the person or entity, with which you have an existing account that requests information in your credit report for the purposes of reviewing or collecting the account.

Reviewing the account includes activities related to account maintenance, monitoring, credit line increases, and account upgrades and enhancements.

- **You may seek damages from violators.** If a consumer reporting agency, or, in some cases, a user of consumer reports or a furnisher of information to a consumer reporting agency violates the FCRA, you may be able to sue in state or federal court.

- **Identity theft victims and active duty military personnel have additional rights.** For more information, visit www.consumerfinance.gov/learnmore.

States may enforce the FCRA, and many states have their own consumer reporting laws. In some cases, you may have more rights under state law. For more information, contact your state or local consumer protection agency or your state Attorney General. For information about your federal rights, contact:

TYPE OF BUSINESS:	CONTACT:
1.a. Banks, savings associations, and credit unions with total assets of over $10 billion and their affiliates b. Such affiliates that are not banks, savings associations, or credit unions also should list, in addition to the CFPB:	a. Consumer Financial Protection Bureau 1700 G Street, N.W. Washington, DC 20552 b. Federal Trade Commission Consumer Response Center 600 Pennsylvania Avenue, N.W. Washington, DC 20580 (877) 382-4357
2. To the extent not included in item 1 above: a. National banks, federal savings associations, and federal branches and federal agencies of foreign banks b. State member banks, branches and agencies of foreign banks (other than federal branches, federal agencies, and Insured State Branches of Foreign Banks), commercial lending companies owned or controlled by foreign banks, and organizations operating under section 25 or 25A of the Federal Reserve Act. c. Nonmember Insured Banks, Insured State Branches of Foreign Banks, and insured state savings associations d. Federal Credit Unions	a. Office of the Comptroller of the Currency Customer Assistance Group 1301 McKinney Street, Suite 3450 Houston, TX 77010-9050 b. Federal Reserve Consumer Help Center P.O. Box 1200 Minneapolis, MN 55480 c. FDIC Consumer Response Center 1100 Walnut Street, Box #11 Kansas City, MO 64106 d. National Credit Union Administration Office of Consumer Financial Protection (OCFP) Division of Consumer Compliance Policy and Outreach 1775 Duke Street Alexandria, VA 22314
3. Air carriers	Asst. General Counsel for Aviation Enforcement & Proceedings Aviation Consumer Protection Division Department of Transportation 1200 New Jersey Avenue, S.E. Washington, DC 20590
4. Creditors Subject to the Surface Transportation Board	Office of Proceedings, Surface Transportation Board Department of Transportation 395 E Street, S.W. Washington, DC 20423
5. Creditors Subject to the Packers and Stockyards Act, 1921	Nearest Packers and Stockyards Administration area supervisor
6. Small Business Investment Companies	Associate Deputy Administrator for Capital Access United States Small Business Administration 409 Third Street, S.W., Suite 8200 Washington, DC 20416

7. Brokers and Dealers	Securities and Exchange Commission 100 F Street, N.E. Washington, DC 20549
8. Federal Land Banks, Federal Land Bank Associations, Federal Intermediate Credit Banks, and Production Credit Associations	Farm Credit Administration 1501 Farm Credit Drive McLean, VA 22102-5090
9. Retailers, Finance Companies, and All Other Creditors Not Listed Above	Federal Trade Commission Consumer Response Center 600 Pennsylvania Avenue, N.W. Washington, DC 20580 (877) 382-4357

California Summary of Rights

Under Section 1786.22 of the California Civil Code (part of the Investigative Consumer Reporting Agencies Act), an investigative consumer reporting agency shall supply files and information required under Section 1786.10 during normal business hours and on reasonable notice.

An investigative consumer reporting agency shall make available files maintained on a consumer for the consumer's visual inspection as follows:

(1) In person, if he/she appears in person and furnishes proper identification. A copy of the individual's file shall also be available to the consumer for a fee not to exceed the actual costs of duplication services provided.

(2) By certified mail, if he/she makes a written request, with proper identification, for copies to be sent to a specified addressee. Investigative consumer reporting agencies complying with requests for certified mailings under this section shall not be liable for disclosures to third parties caused by mishandling of mail after such mailings leave the investigative consumer reporting agencies.

(3) A summary of all information contained in files on a consumer and required to be provided by Section 1786.10 shall be provided by telephone, if the consumer has made a written request, with proper identification for telephone disclosure, and the toll charge, if any, for the telephone call is prepaid by or charged directly to the consumer.

The term "proper identification" as used in subdivision (b) shall mean that information generally deemed sufficient to identify a person. Such information includes documents such as a valid driver's license, social security account number, military identification card, and credit cards. Only if the consumer is unable to reasonably identify himself/herself with the information described above, may an investigative consumer reporting agency require additional information concerning the consumer's employment and personal or family history in order to verify his/her identity.

The investigative consumer reporting agency shall provide trained personnel to explain to the consumer any information furnished him/her pursuant to Section 1786.10.

The investigative consumer reporting agency shall provide a written explanation of any coded information contained in files maintained on a consumer. This written explanation shall be distributed whenever a file is provided to a consumer for visual inspection as required under Section 1786.22.

The consumer shall be permitted to be accompanied by one other person of his/her choosing, who shall furnish reasonable identification. An investigative consumer reporting agency may require the consumer to furnish a written statement granting permission to the consumer reporting agency to discuss the consumer's file in such person's presence.

Cal. Civ. Code §§ 1785.10, 1785.15

You have a right to obtain a copy of your credit file from a consumer credit reporting agency. You may be charged a reasonable fee not exceeding eight dollars ($8). There is no fee, however, if you have been turned down for credit, employment, insurance, or a rental dwelling because of information in your credit report within the preceding 60 days. The consumer credit reporting agency must provide someone to help you interpret the information in your credit file.

You have a right to dispute inaccurate information by contacting the consumer credit reporting agency directly. However, neither you nor any credit repair company or credit service organization has the right to have accurate, current, and verifiable information removed from your credit report. Under the Federal Fair Credit Reporting Act, the consumer credit reporting agency must remove accurate, negative information from your report only if it is over seven years old. Bankruptcy information can be reported for 10 years.

If you have notified a consumer credit reporting agency in writing that you dispute the accuracy of information in your file, the consumer credit reporting agency must then, within 30 business days, reinvestigate and modify or remove inaccurate information. The consumer credit reporting agency may not charge a fee for this service. Any pertinent information and copies of all documents you have concerning an error should be given to the consumer credit reporting agency.

If reinvestigation does not resolve the dispute to your satisfaction, you may send a brief statement to the consumer credit reporting agency to keep in your file, explaining why you think the record is inaccurate. The consumer credit reporting agency must include your statement about disputed information in a report it issues about you.

You have a right to receive a record of all inquiries relating to a credit transaction initiated in 12 months preceding your request. This record shall include the recipients of any consumer credit report.

You may request in writing that the information contained in your file not be provided to a third party for marketing purposes.

You have a right to place a “security alert” in your credit report, which will warn anyone who receives information in your credit report that your identity may have been used without your consent. Recipients of your credit report are required to take reasonable steps, including contacting you at the telephone number you may provide with your security alert, to verify your identity prior to lending money, extending credit, or completing the purchase, lease, or rental of goods or services. The security alert may prevent credit, loans, and services from being approved in your name without your consent. However, you should be aware that taking advantage of this right may delay or interfere with the timely approval of any subsequent request or application you make regarding a new loan, credit, mortgage, or cellular phone or other new account, including an extension of credit at point of sale. If you place a security alert on your credit report, you have a right to obtain a free copy of your credit report at the time the 90-day security alert period expires. A security alert may be requested by calling the following toll-free

telephone number: Experian: (888) 397-3742; Equifax: (888) 766-0008 and/or TransUnion: (800) 680-7289. California consumers also have the right to obtain a "security freeze."

You have a right to place a "security freeze" on your credit report, which will prohibit a consumer credit reporting agency from releasing any information in your credit report without your express authorization. A security freeze must be requested in writing by mail. The security freeze is designed to prevent credit, loans, and services from being approved in your name without your consent. However, you should be aware that using a security freeze to take control over who gets access to the personal and financial information in your credit report may delay, interfere with, or prohibit the timely approval of any subsequent request or application you make regarding a new loan, credit, mortgage, or cellular phone or other new account, including an extension of credit at point of sale. When you place a security freeze on your credit report, you will be provided a personal identification number or password to use if you choose to remove the freeze on your credit report or authorize the release of your credit report for a specific party or period of time after the freeze is in place. To provide that authorization you must contact the consumer credit reporting agency and provide all of the following:

(1) The personal identification number or password.
(2) Proper identification to verify your identity.
(3) The proper information regarding the third party who is to receive the credit report or the period of time for which the report shall be available to users of the credit report.

A consumer credit reporting agency must authorize the release of your credit report no later than three business days after receiving the above information.

A security freeze does not apply when you have an existing account and a copy of your report is requested by your existing creditor or its agents or affiliates for certain types of account review, collection, fraud control, or similar activities.

If you are actively seeking credit, you should understand that the procedures involved in lifting a security freeze may slow your application for credit. You should plan ahead and lift a freeze, either completely if you are shopping around, or specifically for a certain creditor, before applying for new credit.

A consumer credit reporting agency may not charge a fee to a consumer for placing or removing a security freeze if the consumer is a victim of identity theft and submits a copy of a valid police report or valid Department of Motor Vehicles investigative report. A person 65 years of age or older with proper identification may be charged a fee of no more than $5 for placing, lifting, or removing a security freeze. All other consumers may be charged a fee of no more than $10 for each of these steps.

You have a right to bring civil action against anyone, including a consumer credit reporting agency, who improperly obtains access to a file, knowingly or willfully misuses file data, or fails to correct inaccurate file data.

If you are a victim of identity theft and provide to a consumer credit reporting agency a copy of a valid police report or a valid investigative report made by a Department of Motor Vehicles investigator with peace officer status describing your circumstances, the following shall apply:

(1) You have a right to have any information you list on the report as allegedly fraudulent promptly blocked so that the information cannot be reported. The information will be unblocked only if (A) the information you provide is a material misrepresentation of the facts, (B) you agree that the information is blocked in error, or (C) you knowingly obtained possession of goods, services, or moneys as result of the blocked transactions. If blocked information is unblocked, you will be promptly notified.

(2) You have a right to receive, free of charge and upon request, one copy of your credit report each month for up to 12 consecutive months.

Resumen de derechos de California

En virtud del artículo 1786.22 del Código Civil de California (parte de la Ley sobre Agencias de Informes Investigativos de Consumidores), una agencia de informes investigativos de los consumidores suministrará archivos e información requeridos en virtud del artículo 1786.10 durante el horario comercial habitual y mediante un aviso razonable.

Una agencia de informes investigativos de los consumidores pondrá a disposición los archivos mantenidos sobre un consumidor para que este pueda inspeccionarlos visualmente de la siguiente forma:

(1) En persona, si él/ella aparece en persona y presenta identificación adecuada. También se pondrá a disposición del consumidor una copia del archivo individual a cambio de un cargo que no excederá los costos reales de los servicios de copia suministrados.

(2) Mediante correo certificado, si él/ella presenta una solicitud escrita, con identificación adecuada, para que se envíen copias a un destinatario especificado. Las agencias de informes investigativos del consumidor que cumplen con solicitudes de correos certificados en virtud de esta sección no serán responsables de divulgaciones a terceros causadas por el mal manejo de los correos después de que dichos correos abandonan las agencias de informes investigativos del consumidor.

(3) Un resumen de toda la información contenida en archivos sobre un consumidor y que se debe suministrar en virtud del artículo 1786.10 se suministrará por teléfono, si el consumidor ha presentado una solicitud escrita, con identificación adecuada para divulgación telefónica, y el cargo telefónico, si lo hubiera, para la llamada telefónica es pagado previamente por el consumidor o cobrado directamente a este.

El término “identificación adecuada” conforme se usa en la subdivisión (b) hará referencia a la información que es considerada generalmente como suficiente para identificar a una persona. Dicha información incluye documentos, como por ejemplo una licencia para conducir, número cuenta de seguridad social, tarjeta de identificación militar y tarjetas de crédito válidos. Solo si el consumidor no puede identificarse razonablemente con la información antes descrita, una agencia de informes investigativos de los consumidores puede requerir información adicional respecto al empleo y el historial personal o familiar del consumidor para verificar su identidad.

La agencia de informes investigativos de los consumidores suministrará personal capacitado para explicarle al consumidor cualquier información que se le haya suministrado conforme al artículo 1786.10.

La agencia de informes investigativos de los consumidores suministrará una explicación escrita de cualquier información cifrada que esté contenida en los archivos mantenidos sobre un consumidor. Esta explicación escrita se distribuirá cuando se suministre un archivo a un consumidor para que lo inspeccione visualmente tal y como lo exige el artículo 1786.22.

El consumidor podrá estar acompañado por otra persona que elija, y esta persona deberá presentar identificación razonable. Una agencia de informes investigativos de los consumidores puede exigir al consumidor que presente una declaración escrita que autorice a la agencia de informes investigativos a hablar sobre el archivo del consumidor en presencia de dicha persona.

Cód. Civil de California, art. 1785.10, 1785.15

Usted tiene derecho a que una agencia de informes de crédito de los consumidores le suministre una copia de su archivo de crédito. Es posible que se le cobre un cargo razonable que no excederá los ocho dólares ($8). Sin embargo, no se cobrará ningún cargo si le han denegado un crédito, empleo, seguro o arrendamiento de vivienda debido a la información en su informe de crédito dentro de los 60 días precedentes. La agencia de informes de crédito de los consumidores debe suministrar alguien que le ayude a interpretar la información en su archivo de crédito.

Usted tiene derecho a objetar toda la información imprecisa comunicándose directamente con la agencia de informes de crédito de los consumidores. Sin embargo, ni usted ni una compañía de reparación de crédito u organización de servicio de crédito tiene el derecho a que se retire información precisa, actual y verificable de su informe de crédito. En virtud de la Ley Federal de Informes de Crédito Imparciales, la agencia de informes de crédito de los consumidores debe retirar la información precisa y negativa de su informe solo si tiene más de siete años. La información de quiebras puede reportarse durante 10 años.

Si usted notificó por escrito a una agencia de informes de crédito de los consumidores que alguna información en su archivo es imprecisa, la agencia de informes de crédito de los consumidores debe entonces, dentro de 30 días hábiles, reinvestigar y modificar o retirar la información imprecisa. La agencia de informes de crédito de los consumidores no puede cobrar un cargo por este servicio. Cualquier información pertinente y copias de todos los documentos que tenga respecto a un error debe ser entregada a la agencia de informes de crédito de los consumidores.

Si la reinvestigación no resuelve la controversia a su satisfacción, puede enviar un escrito breve a la agencia de informes de crédito de los consumidores que conservará en su archivo, en la cual deberá explicar por qué considera que el registro es impreciso. La agencia de informes de crédito de los consumidores debe incluir su declaración sobre la información objetada en un informe que emite sobre usted.

Usted el derecho a recibir un registro de todas las consultas relacionadas con una transacción de crédito iniciada en los 12 meses anteriores a su solicitud. Este registro incluirá los destinatarios de cualquier informe de crédito del consumidor.

Puede solicitar por escrito que la información contenida en su archivo no se suministre a un tercero para propósitos de mercadeo.

Tiene derecho a ubicar una “alerta de seguridad” en su informe de crédito, que advertirá a cualquiera que reciba información en su informe de crédito que su identidad puede haber sido usada sin su consentimiento. Los receptores de su informe de crédito deberán tomar medidas razonables, que incluyen comunicarse con usted al número de teléfono que pueda suministrar con su alerta de seguridad, para verificar su identidad antes de prestar dinero, ofrecer un crédito o completar la compra, renta o arrendamiento de bienes o servicios. La alerta de seguridad puede impedir que se aprueben créditos, préstamos y servicios en su nombre sin su consentimiento. No obstante, debe tener en cuenta que el hecho de hacer uso de este derecho puede retrasar o interferir con la aprobación oportuna de cualquier solicitud o petición posterior que usted haga respecto a un nuevo préstamo, crédito, hipoteca o cuenta de teléfono celular u otra cuenta nueva, incluida una concesión de crédito en el punto de venta. Si usted establece una alerta de

seguridad en su informe de crédito, tiene derecho a recibir una copia gratuita de su informe de crédito al momento en que expire el período de alerta de seguridad de 90 días. Podrá solicitar una alerta de seguridad llamando al siguiente número telefónico gratuito: Experian: (888) 397-3742; Equifax: (888) 766-0008 y/o TransUnion: (800) 680-7289.

Los consumidores de California también tienen el derecho a obtener un "bloqueo de seguridad".

Usted tiene derecho a establecer un "bloqueo de seguridad" en su informe de crédito, el cual prohibirá a una agencia de informes de crédito de los consumidores liberar cualquier información que se encuentre en su informe de crédito sin su autorización expresa. Los bloqueos de seguridad se deben solicitar mediante correo postal escrito. El bloqueo de seguridad está diseñado para impedir que se aprueben créditos, préstamos y servicios en su nombre sin su consentimiento. Sin embargo, usted debe saber que el hecho de usar un bloqueo de seguridad para asumir el control sobre quién accede a la información personal y financiera en su informe de crédito puede retrasar, interferir o prohibir la aprobación oportuna de cualquier solicitud o petición posterior que usted haga respecto a un nuevo préstamo, crédito, hipoteca o teléfono celular u otra nueva cuenta, incluida una concesión de crédito en el punto de venta. Cuando usted fija un bloqueo de seguridad en su informe de crédito, se le dará un número de identificación personal o contraseña que podrá usar si opta por retirar el bloqueo en su informe de crédito o autoriza la entrega de su informe de crédito para una parte específica o por un período de tiempo específico después de que se implemente el bloqueo. Para suministrar esta autorización, usted debe comunicarse con la agencia de informes de crédito de los consumidores y suministrar toda la siguiente información:

(1) El número de identificación personal o contraseña.
(2) Identificación adecuada para verificar su identidad.
(3) La información adecuada respecto al tercero que recibirá el informe de crédito o el período de tiempo por el cual estará disponible el informe para los usuarios del informe de crédito.

Una agencia de informes de crédito de los consumidores debe autorizar la liberación de su informe de crédito a más tardar tres días hábiles después de recibir la información anterior.

Un bloqueo de seguridad no se aplica cuando usted tiene una cuenta existente y su acreedor existente o los agentes o filiales del mismo solicitan una copia de su informe para ciertos tipos de actividades de revisión de cuentas, cobranza, control de fraudes o actividades similares.

Si usted está solicitando un crédito de manera activa, debe saber que los procedimientos que se requieren para retirar un bloqueo de seguridad pueden ralentizar su solicitud de crédito. Debe planear con antelación y retirar un bloqueo, ya sea completamente si va a realizar compras, o específicamente para un acreedor específico, antes de solicitar un nuevo crédito.

Una agencia de informes de crédito de los consumidores no puede cobrar un cargo a un consumidor por establecer o retirar un bloqueo de seguridad si el consumidor es víctima de robo de identidad y presenta una copia de una denuncia policial válida o informe investigativo válido del Departamento de Vehículos Motorizados. No se podrá cobrar a una persona de 65 años o más que tenga una identificación adecuada por establecer un bloqueo de seguridad inicial, pero podrá cobrarse un cargo de máximo $5 por levantar, remplazar o retirar un bloqueo de seguridad.

Se podrá cobrar a todos los demás consumidores un cargo de máximo $10 por cada uno de estos pasos.

Usted tiene derecho a presentar una demanda civil contra cualquiera, incluida una agencia de informes de crédito de los consumidores, que tenga acceso a un archivo de forma indebida, haga un mal uso intencional o voluntario de los datos de un archivo o no corrija datos de archivo imprecisos.

Si usted es víctima de robo de identidad y suministra a una agencia de informes de crédito de los consumidores una copia de una denuncia policial válida o un informe investigativo válido elaborado por un investigador del Departamento de Vehículos Motorizados en condición de oficial de la fuerza pública que describa sus circunstancias, se aplicará lo siguiente:

(1) usted tiene derecho a que se bloquee de inmediato cualquier información que usted incluya en el informe como presuntamente fraudulenta de manera que no pueda reportarse la información. La información será desbloqueada solo si (A) la información que usted suministra es una representación fraudulenta grave de los hechos, (B) usted acepta que la información fue bloqueada por error o (C) usted obtuvo conscientemente la posesión de bienes, servicios o dinero como consecuencia de las transacciones bloqueadas. Si se desbloqueara la información bloqueada, usted será notificado de inmediato.

(2) Usted tiene derecho a recibir, sin cargo alguno y tras solicitud de la misma, una copia de su informe de crédito cada mes durante máximo 12 meses consecutivos.

EXHIBIT E

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

---------- Forwarded message ---------
From: <Compliance@asurint.com>
Date: Tue, Feb 28, 2023 at 2:54 PM
Subject: Pre-Adverse Action Notification
To: <rob.sandoval2000@gmail.com>

Pre-Adverse Action - PERSONAL AND CONFIDENTIAL

2/28/2023

ROBERTO SANDOVAL
2894 Franklin Avenue
San Diego, CA 92113

Dear Roberto,

In evaluating your conditional offer of employment, transfer or promotion with Vons/Pavilions, we received the enclosed screening report that we procured with your authorization from Asurint. This notification is provided because an adverse employment decision (e.g. the withdrawal of a conditional offer of employment, transfer or promotion) may be based, in whole or in part, on this screening report or on information regarding past criminal convictions that you identified during the application process. Please carefully review the screening report. **We have identified the following convictions on your report to be job-related:**

Sex Offender

- **If you believe that any information contained in the screening report is inaccurate or incomplete**, you should **contact Asurint**. If you do not contact Asurint within 5 business days, Vons/Pavilions will make its final decision based on the information contained in the screening report and any other information you provide in response to this letter. You may contact Asurint at the following address, phone number or on their website or you may complete the enclosed dispute form and return to Asurint if you wish to challenge the accuracy or completeness of the report:

ASURINT
Compliance Department

P.O. Box 14730
Cleveland, OH 44114
(800) 906-2034
Compliance@Asurint.com
www.asurint.com/#compliance

- **If you believe that the convictions identified in the screening report or identified by you during the application process are not job-related, or you wish to present mitigating evidence or evidence of rehabilitation, you should send an e-mail to the Albertsons Companies at** criminal.checks@albertsons.com **or leave a voicemail message Toll Free at (855)-275-7185 no later than five (5) business days after the date of this letter**. Please note that in evaluating whether conviction(s) are job-related; Vons/Pavilions considers the nature of the crime(s), the time that has elapsed since the conviction(s) or incarceration and the nature of the job. Vons/Pavilions also considers whether an applicant has been truthful about the existence of the conviction(s), and as stated on the application, any false statement or omission on the application may result in the withdrawal of the employment offer. Candidates who are challenging the job-relatedness of the conviction(s) identified in the screening report may be invited to provide information regarding the facts or circumstances giving rise to the conviction(s), their age at the time of the conviction(s), post-conviction employment in similar positions with no incidents of criminal conduct, length and consistency or employment history before or after the offense, rehabilitation efforts and employment or character references regarding the candidate's fitness for a particular position.
- **contained in the screening report is inaccurate or incomplete and that the convictions are not job related, you should contact both Asurint and Vons/Pavilions no later than five (5) business days after the date of this letter, as discussed above.**

If you do not contact Asurint and/or Vons/Pavilions within five (5) business days, Vons/Pavilions will make its final decision based on the information contained in the screening report and information regarding past criminal convictions that you identified during the application process.

Thank you for your interest in our company.

Sincerely,

Employment Manager
Vons/Pavilions

515 W Washington ST c/o Albertsons, San Diego, CA 92103

Please go to https://reports.asurint.com/fcra and enter the following information.

Your Last Name
Last 4 digits of Your SSN
This Unique PIN Value: 14eMi79R

This secure log-in will direct you to a site where you can download, view, or print (1) a copy

of the report we obtained from Asurint, (2) A Summary of Your Rights Under the Fair Credit Reporting Act.

Asurint
Compliance Department
PO Box 14730
Cleveland, OH 44114
Phone (800) 906-2034

48984538

EXHIBIT F

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

From: **Rob Sandoval** <rob.sandoval2000@gmail.com>
Date: Mon, Mar 6, 2023 at 8:36 AM
Subject: Roberto Sandoval - mitigation and rehabilitation
To: <crystal.maving@albertsons.com>
Cc: <Compliance@asurint.com>

Ms. Maving, I received an email from asurint informing me that my employment would be terminated due to my background check, but giving me five business days to respond with mitigating and rehabilitative evidence so that you could consider keeping me as an employee. Attached please find 3 character letters from former coworkers and a letter from my former therapist, all of which I used at my sentencing hearing. Also attached is a certificate for having completed the residential portion of a drug and alcohol rehabilitation program. I would also like to let you know that I worked as a high school teacher for 15 years at the Sweetwater union high school district without any incidents of misconduct. Feel free to reach out to my former employer if you would like to verify this at 619-691-5500.

Please reply to confirm receipt of this email.

Thank you for your consideration.

Roberto Sandoval
EID# 20293304

CHULA VISTA HIGH LEARNING CENTER

450 K ST CHULA VISTA, CA 91911
TEL: 619-476-3380 FAX: 427-6538

To Whom It May Concern,

My name is Roberto Chaidez and I am the lead teacher at Chula Vista Learning Center. I worked with Roberto Sandoval for six months in the capacity of the lead teacher for our center. In our environment we had a total of 3 teachers, one aide, one counselor and one registrar. We all worked in very close quarters. We had one building and all classes were in the open. Not once, in all the six months I knew Mr. Sandoval, did I have a student complain about Mr. Sandoval. The students responded well and they never had any incidents with Mr. Sandoval. At work he carried himself professionally and I as a lead teacher never saw anything that would suggest otherwise. If you have any questions you can contact me at: Roberto.chaidez@sweetwaterschools.org.

Sincerely,

Roberto Chaidez

Chula Vista Learning Center Lead Teacher

Chula Vista High School
Home of Champions
Chula Vista High School
820 Fourth Ave.
Chula Vista , CA
91911
619-691-5765

August 3, 2017

To whom it may concern

Roberto and I shared a room at Chula Vista High School in 2003 and worked together until 2005. Although I had been teaching a few years longer than Roberto, I found Roberto to be a conscientious teacher and he taught me new techniques and tools I still use today.

Roberto was always patient and courteous with his students and never inappropriate in discipline or contact.

I found Roberto to be an asset to our educational facility Please feel free to contact me via e-mail at dale.griepenstroh@sweetwaterschools.org or call me at 619-518-2200 if you have further questions regarding Roberto Sandoval.

Sincerely

Dale Griepenstroh
History Teacher

The Sweetwater Union High School District will provide equal access to, and opportunity for, participation in high quality curricular and extra curricular activities for all students.

INTRAPSYCHIC

August 11, 2017

Brian White, Esq.

4320 Iowa Street

San Diego, CA 92104

Mr. White:

At your request the following is written to provide my opinion on the 'receptivity' to treatment evidenced by your client and my patient, Mr. Roberto Sandoval, a man with whom I have worked in sexual offense-specific treatment over the course of approximately the last 16 months.

I am a forensic psychologist licensed by the State of California to practice psychology. I own a private practice outpatient clinic in San Diego, and treat approximately 200 criminal offenders weekly. Twelve years ago I was awarded the private bid contract to treat the highest risk sexual offenders in San Diego County, those men released to the community after stay in prison hospital attendant to California Welfare and Institutions Code Sexually Violent Predator Statutes. I continue to work with these offenders. In 2014 I was awarded the contract to treat adult males investigated for or charged with crimes of child pornography possession, by United States Federal Probation. In the same year, San Diego County of Probation awarded me the contract to evaluate adult male offenders released from prison to county probation, attendant to California Assembly Bill 109. I have completed thousands of psychological evaluations on criminal offenders, have offered my opinions to state and federal courts on thousands of occasions, have testified frequently in criminal court, and have published articles in peer-reviewed professional journals. Finally, I was trained in the assessment of psychopathy by Robert D. Hare, Ph.D. the world's expert in the construct, in his laboratory at University of British Columbia, in 1997.

I have found Mr. Sandoval to be an apt, thoughtful, intelligent patient. He admits to his behavior in the controlling crime, recognizes its gravity, and has demonstrated empathic concern for young girls involved in crimes of child pornography. He is neither antisocial nor psychopathic, and I believe that his sexual recidivism risk can be reduced by treatment intervention.

Thank you for your consideration. Should you desire further information please do not hesitate to contact me.

Sincerely,

James A. Reavis, Psy.D.

Director, Intrapsychic

1333 CAMINO DEL RIO SOUTH • SUITE 105 • SAN DIEGO, CA 92108 • TEL 619.234.7970 • FAX 619.584.4829

Honorable Janis Sammartino
United States District Judge
Southern District of California
333 West Broadway
San Diego, CA 92101

August 12, 2017

Your Honor,

I am writing this letter on behalf of Mr. Roberto Sandoval at his request. I am a teacher in the Learning Center at Southwest High School, and I worked directly with Mr. Sandoval as a colleague during 2008-2009 school year. Learning Center is a credit recovery program for at-risk students in the Sweetwater Union High School District. The nature of our program requires a team of teachers to work with students individually to instruct, tutor, and mentor students in a connected, multi-classroom setting.

I often observed Mr. Sandoval working one-on-one with the students on his caseload, and found him to be professional, personable, and committed to student success. Although we did not become close friends, we had a positive working relationship. This relationship continued after Mr. Sandoval transferred to the Learning Center at Montgomery High School, where he continued as a member of the Alternative Education staff in our district.

Please do not hesitate to contact me if you have any questions or need further information.

Respectfully,

Jeff Mechling
Southwest High School Learning Center
Sweetwater Union High School District
(619) 628-3681

Certificate of Achievement

Presented to

ROBERTO SANDOVAL, #51931-298

For successfully completing the residential portion of the

Dual Diagnosis Residential Drug Abuse Treatment Program
On July 15, 2022

This milestone, while significant, is not the completion of the treatment requirements. Roberto Sandoval is hereby eligible to move forward to the follow-up and/or community treatment components of RDAP.

L. Pujol, PsyD., RDAP Coordinator
FCI Terminal Island

7/15/2022
Date

From: **Rob Sandoval** <rob.sandoval2000@gmail.com>
Date: Mon, Mar 6, 2023 at 8:51 AM
Subject: Roberto Sandoval
To: <crystal.maving@albertsons.com>

Ms. Maving, I would also like to clarify my charge as the background check just says sex offender without specifying. I was not a hands on offender. I was convicted of receiving (downloading) nude images of a minor which I disclosed on the application. It was a terrible mistake that I made while under the influence of alcohol. But I assure you that I do not pose a threat to the public. I hope you consider the evidence I sent and give me a chance.

Thank you,

Roberto Sandoval

EXHIBIT G

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

From: **Crystal Maving** <Crystal.Maving@albertsons.com>
Date: Mon, Mar 6, 2023 at 9:34 AM
Subject: Re: EXTERNAL EMAIL: Roberto Sandoval
To: Rob Sandoval <rob.sandoval2000@gmail.com>

Good Morning,

I have no access to background checks and I am not informed when an applicant fails to pass. I do not have the ability to override your background check. You will need to go through Asurint.

Sincerely,
Crystal Maving

Crystal Maving
Labor Relations Manager

From: Rob Sandoval <rob.sandoval2000@gmail.com>
Sent: Monday, March 6, 2023 8:51 AM
To: Crystal Maving <Crystal.Maving@albertsons.com>
Subject: EXTERNAL EMAIL: Roberto Sandoval

Ms. Maving, I would also like to clarify my charge as the background check just says sex offender without specifying. I was not a hands on offender. I was convicted of receiving (downloading) nude images of a minor which I disclosed on the application. It was a terrible mistake that I made while under the influence of alcohol. But I assure you that I do not pose a threat to the public. I hope you consider the evidence I sent and give me a chance.

Thank you,

Roberto Sandoval

Warning: All e-mail sent to this address will be received by the corporate e-mail system, and is subject to archival and review by someone other than the recipient. This e-mail may contain proprietary information and is intended only for the use of the intended recipient(s). If the reader of this message is not the intended recipient(s), you are notified that you have received this message in error and that any review, dissemination, distribution or copying of this message is strictly prohibited. If you have received this message in error, please notify the sender immediately.

EXHIBIT H

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

From: **Rob Sandoval** <rob.sandoval2000@gmail.com>
Date: Tue, Mar 7, 2023 at 11:52 AM
Subject: Roberto Sandoval mitigating and rehabilitative evidence
To: <criminal.checks@albertsons.com>

Attached please find documents related to mitigating and rehabilitative evidence for your consideration. Included are three letters I used from former co-workers and a letter from my therapist which I presented to the judge at my sentencing hearing. Also included is my certificate from a residential drug and alcohol program. I also wanted to let you know that I worked as a high school teacher for 15 years, and there were never any incidents of misconduct. Feel free to contact Sweetwater Union High School District at 619-691-5500 to varifty this. If you have any specific questions regarding my charge, please let me know.

Thank you,

Roberto Sandoval

CHULA VISTA HIGH LEARNING CENTER

450 K ST CHULA VISTA, CA 91911
TEL: 619-476-3380 FAX: 427-6538

To Whom It May Concern,

My name is Roberto Chaidez and I am the lead teacher at Chula Vista Learning Center. I worked with Roberto Sandoval for six months in the capacity of the lead teacher for our center. In our environment we had a total of 3 teachers, one aide, one counselor and one registrar. We all worked in very close quarters. We had one building and all classes were in the open. Not once, in all the six months I knew Mr. Sandoval, did I have a student complain about Mr. Sandoval. The students responded well and they never had any incidents with Mr. Sandoval. At work he carried himself professionally and I as a lead teacher never saw anything that would suggest otherwise. If you have any questions you can contact me at: Roberto.chaidez@sweetwaterschools.org.

Sincerely,

Roberto Chaidez

Chula Vista Learning Center Lead Teacher

August 3, 2017

To whom it may concern

Roberto and I shared a room at Chula Vista High School in 2003 and worked together until 2005. Although I had been teaching a few years longer than Roberto, I found Roberto to be a conscientious teacher and he taught me new techniques and tools I still use today.

Roberto was always patient and courteous with his students and never inappropriate in discipline or contact.

I found Roberto to be an asset to our educational facility Please feel free to contact me via e-mail at dale.griepenstroh@sweetwaterschools.org or call me at 619-518-2200 if you have further questions regarding Roberto Sandoval.

Sincerely

Dale Griepenstroh
History Teacher

The Sweetwater Union High School District will provide equal access to, and opportunity for, participation in high quality curricular and extra curricular activities for all students.

INTRAPSYCHIC

August 11, 2017

Brian White, Esq.

4320 Iowa Street

San Diego, CA 92104

Mr. White:

At your request the following is written to provide my opinion on the 'receptivity' to treatment evidenced by your client and my patient, Mr. Roberto Sandoval, a man with whom I have worked in sexual offense-specific treatment over the course of approximately the last 16 months.

I am a forensic psychologist licensed by the State of California to practice psychology. I own a private practice outpatient clinic in San Diego, and treat approximately 200 criminal offenders weekly. Twelve years ago I was awarded the private bid contract to treat the highest risk sexual offenders in San Diego County, those men released to the community after stay in prison hospital attendant to California Welfare and Institutions Code Sexually Violent Predator Statutes. I continue to work with these offenders. In 2014 I was awarded the contract to treat adult males investigated for or charged with crimes of child pornography possession, by United States Federal Probation. In the same year, San Diego County of Probation awarded me the contract to evaluate adult male offenders released from prison to county probation, attendant to California Assembly Bill 109. I have completed thousands of psychological evaluations on criminal offenders, have offered my opinions to state and federal courts on thousands of occasions, have testified frequently in criminal court, and have published articles in peer-reviewed professional journals. Finally, I was trained in the assessment of psychopathy by Robert D. Hare, Ph.D. the world's expert in the construct, in his laboratory at University of British Columbia, in 1997.

I have found Mr. Sandoval to be an apt, thoughtful, intelligent patient. He admits to his behavior in the controlling crime, recognizes its gravity, and has demonstrated empathic concern for young girls involved in crimes of child pornography. He is neither antisocial nor psychopathic, and I believe that his sexual recidivism risk can be reduced by treatment intervention.

Thank you for your consideration. Should you desire further information please do not hesitate to contact me.

Sincerely,

James A. Reavis, Psy.D.

Director, Intrapsychic

1333 CAMINO DEL RIO SOUTH • SUITE 105 • SAN DIEGO, CA 92108 • TEL 619.234.7970 • FAX 619.584.4829

Honorable Janis Sammartino
United States District Judge
Southern District of California
333 West Broadway
San Diego, CA 92101

August 12, 2017

Your Honor,

I am writing this letter on behalf of Mr. Roberto Sandoval at his request. I am a teacher in the Learning Center at Southwest High School, and I worked directly with Mr. Sandoval as a colleague during 2008-2009 school year. Learning Center is a credit recovery program for at-risk students in the Sweetwater Union High School District. The nature of our program requires a team of teachers to work with students individually to instruct, tutor, and mentor students in a connected, multi-classroom setting.

I often observed Mr. Sandoval working one-on-one with the students on his caseload, and found him to be professional, personable, and committed to student success. Although we did not become close friends, we had a positive working relationship. This relationship continued after Mr. Sandoval transferred to the Learning Center at Montgomery High School, where he continued as a member of the Alternative Education staff in our district.

Please do not hesitate to contact me if you have any questions or need further information.

Respectfully,

Jeff Mechling
Southwest High School Learning Center
Sweetwater Union High School District
(619) 628-3681

Certificate of Achievement

Presented to

ROBERTO SANDOVAL, #51931-298

For successfully completing the residential portion of the

Dual Diagnosis Residential Drug Abuse Treatment Program
On July 15, 2022

This milestone, while significant, is not the completion of the treatment requirements. Roberto Sandoval is hereby eligible to move forward to the follow-up and/or community treatment components of RDAP.

L. Pujol, PsyD., RDAP Coordinator
FCI Terminal Island

7/15/2022
Date

EXHIBIT I

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

From: <Compliance@asurint.com>
Date: Tue, Mar 7, 2023 at 9:07 PM
Subject: Adverse Action Notification
To: <rob.sandoval2000@gmail.com>

PERSONAL AND CONFIDENTIAL

3/8/2023

ROBERTO SANDOVAL
2894 Franklin Avenue
San Diego, CA 92113

Dear Applicant,

We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.

This decision was influenced in whole or in part by a pre-employment screening report prepared by Asurint. Please note that Asurint did not make this employment decision on behalf of our company. This decision was made pursuant to Vons/Pavilions hiring policies.

We have identified the following convictions on your report to be job-related:

Sex Offender

The decision to withdrawal the employment offer is based on the fact that one or more convictions were found during the pre-employment screening process that Vons/Pavilions considers related to the job duties of the position to which you applied. Therefore, Vons/Pavilions has concluded that it is consistent with business necessity to withdraw your offer of employment.

California applicants/employees have the right to file a complaint with the California Department of Fair Employment and Housing regarding the decision.

Thank you for your interest in Vons/Pavilions. We wish you well in your future endeavors.

Sincerely,

Employment Manager
Vons/Pavilions

You have the right to dispute the accuracy, completeness of any information in the report by contacting Asurint. You may also obtain a free copy of your consumer report directly from Asurint if you request it within sixty (60) days. For a form to dispute the accuracy or completeness of any information in your consumer report or request a copy of your consumer report, please visit the Asurint website at: http://www.asurint.com/Compliance.aspx. Further, you may contact Asurint at the following address or phone number:

Please go to https://reports.asurint.com/fcra and enter the following information.

Your Last Name
Last 4 digits of Your SSN
This Unique PIN Value: 14eMi79R

This secure log-in will direct you to a site where you can download, view, or print (1) a copy of the report we obtained from Asurint, (2) A Summary of Your Rights Under the Fair Credit Reporting Act.

Asurint
Compliance Department
PO Box 14730
Cleveland, OH 44114
Phone (800) 906-2034

48984538

EXHIBIT J

From: **Rob Sandoval** <rob.sandoval2000@gmail.com>
Date: Wed, Mar 8, 2023 at 10:30 PM
Subject: Re: Roberto Sandoval mitigating and rehabilitative evidence
To: <criminal.checks@albertsons.com>

I received an email from asurint informing me that my employment has been terminated because my offense is allegedly related to the position for which I was hired. I would like to know if I can apply for other positions for which my offense is not related, such as overnight stocking clerk?

Roberto Sandoval

On Tue, Mar 7, 2023, 11:52 AM Rob Sandoval <rob.sandoval2000@gmail.com> wrote:

> Attached please find documents related to mitigating and rehabilitative evidence for your consideration. Included are three letters I used from former co-workers and a letter from my therapist which I presented to the judge at my sentencing hearing. Also included is my certificate from a residential drug and alcohol program. I also wanted to let you know that I worked as a high school teacher for 15 years, and there were never any incidents of misconduct. Feel free to contact Sweetwater Union High School District at 619-691-5500 to varifty this. If you have any specific questions regarding my charge, please let me know.
>
> Thank you,
>
> Roberto Sandoval

From: **Rob Sandoval** <rob.sandoval2000@gmail.com>
Date: Fri, Mar 10, 2023 at 10:34 AM
Subject: Can I apply for overnight positions?
To: <criminal.checks@albertsons.com>

I received an email from asurint informing me that my employment has been terminated because my offense is related to the position for which I was hired. I would like to know if I can apply for a positions for which my offense is not related, namely as overnight stocking clerk?

Roberto Sandoval